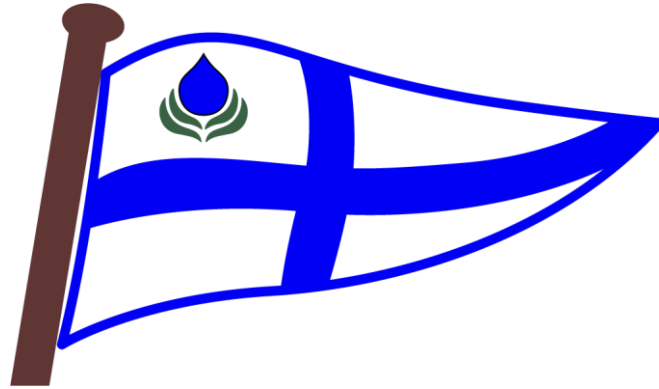




VAAL CRUISING ASSOCIATION

VCA Constitution
Revised 2026/07 SGM



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VAAL CRUISING ASSOCIATION CONSTITUTION

1 NAME:

The name of the CLUB shall be VAAL CRUISING ASSOCIATION (hereinafter referred to as "the CLUB")

2 CORPORATE STATUS:

- 2.1 The CLUB shall be a corporate body having legal persona with perpetual succession, notwithstanding any change in the number or identity of its members, with the capacity to acquire rights and shall be capable of suing and being sued in its own name.
- 2.2 The income and property of the CLUB from whatsoever source with the exception of the redemption of member's loans, shall be applied solely towards the promotion of the objects of the CLUB as set forth in this Constitution and no portion thereof shall ever be paid or transferred directly or indirectly by way of profits, dividends, bonus or otherwise to any member or members of the CLUB (with the exception of the winding-up of the CLUB in terms of Clause 58)
- 2.3 The CLUB shall not be carried on for purpose of gain and the income and assets thereof shall be applied solely towards the promotion of the objects for which the CLUB is established.

3 OBJECTIVES:

The objectives of the CLUB are: -

- 3.1 To operate as a sport, recreational and social club subject to the rules of the CLUB, and to do all such lawful things and carry out all such lawful undertakings as may be necessary or incidental to such objects.
- 3.2 To promote the craft of and interest in yachting, and power boating-
- 3.3 To promote good fellowship and sportsmanship amongst the members of the CLUB.
- 3.4 To purchase, acquire, take, hire, have, hold, possess, retain, sell, let, lease any property movable or immovable, corporeal or incorporeal, whether for the furtherance of the objects of the CLUB or as an investment.
- 3.5 To employ such staff as may be necessary to operate the CLUB either on a full time or part-time basis and to pay remuneration for any such services.
- 3.6 To arrange, hold and organize yacht races, yachting events, yachting activities, power boating events and any functions associated with the sport of yachting and power boating.

4 DOMICILIUM:

- 4.1 The domicilium of the CLUB shall be on PORTION 37 (A portion of Portion 4) of the Farm STRYFONTEIN NR. 477, Registration Division 1.R. Transvaal, which is situated on the northern bank of Aloe Fjord, Vaal Dam.



5 MEMBERSHIP:

Membership of the CLUB may be limited at any time at the discretion of the main committee.

A member shall have no claim against the CLUB or its officials or servants, for loss or damage to property, or for personal injury arising from any act or omission, whether negligent or otherwise, of the CLUB, its Officers, servants or agents.

Membership of the CLUB shall be confined to the following categories: -

- 5.1 Ordinary Member
- 5.2 Intermediate Member
- 5.3 Life Member
- 5.4 Junior Member
- 5.5 Temporary Member
- 5.6 Pensioner Member
- 5.7 Crew Visitor
- 5.8 Honorary Member
- 5.9 Social Member
- 5.10 Honorary Life Member

6 ORDINARY MEMBER

6.1.1 An ordinary member shall be a person over the age of 18 years. The spouse or life partner of an ordinary member shall be entitled to full membership as an ordinary member.

6.1.2 The immediate family of an ordinary member shall enjoy all the privileges and facilities of the CLUB except that children shall be subject to certain restrictions in conformity with the law, CLUB rules and safety rules. Children of an ordinary member shall not be entitled to



vote at any meetings or be eligible for election as officers of the CLUB or to serve on the main committee.

- 6.1.3 An ordinary member in good standing (and their spouse or life partner) shall each be entitled to vote at general meetings and be entitled to election as officers of the CLUB or on to any committee. They shall be entitled to enjoy all the facilities of the CLUB.

7 INTERMEDIATE MEMBER:

- 7.1.1 Junior members of the club, upon reaching the age of 19 years shall, upon payment of the relevant subscription , automatically become Intermediate members of the club.
- 7.1.2 The annual subscription payable by intermediate member's shall be 25% of the prevailing ordinary members subscription.
- 7.1.3 An Intermediate member shall not be liable to pay an entrance fee.
- 7.1.4 Intermediate members shall enjoy all the privileges of ordinary membership except that they shall have no vote at general meetings, nor serve on the main committee.
- 7.1.5 At the first membership renewal following the attainment of the age of 30 years an intermediate member shall relinquish intermediate status and convert to another form of membership. Such member shall not be liable to pay an entrance fee.
- 7.1.6 It is noted that Intermediate members may have a spouse or life partner and children of their own.

8 LIFE MEMBER:

- 8.1.1 An ordinary member who has been a member for a minimum of five consecutive years shall be entitled to become a life member on payment of an amount equal to ten times the then prevailing annual subscription of an ordinary member, which payment shall be in lieu of any further membership fees. The spouse of a life member shall be entitled to life membership.
- 8.1.2 A life member shall pay site fees, racing fees or any other prescribed fees excepting the annual membership subscription.
- 8.1.3 A life member shall be liable for levies or special levies which may be imposed from time to time on the authority of a special general meeting.
- 8.1.4 A life member and spouse or life partner shall enjoy all the privileges of and ordinary member.
- 8.1.5 Life members, who have ceased to be active members of the CLUB within a period of seven years after being admitted as life members, shall be entitled to submit their written resignation and shall have refunded them 25% of the life membership fee paid by them.



9 JUNIOR MEMBER:

- 9.1.1 Junior membership shall be the children of members who are between the ages of twelve and eighteen years.
- 9.1.2 Children of members on attaining the age of twelve will automatically be granted Junior membership upon the payment of the relevant subscription. No entrance fee is payable by junior members.
- 9.1.3 A junior member on attaining the age of nineteen years ceases to be junior member but may during the three months prior to attaining that age apply in the usual manner for ordinary or intermediate membership. The probationary period and entrance fee shall be waived if such applicant has been a junior member for the preceding twelve months.
- 9.1.4 Junior members have no voting rights and may not serve on the main committee.
- 9.1.5 Junior members may own water craft approved by the CLUB and may compete in organized events.
- 9.1.6 Junior members shall be allowed to fly the CLUB burgee and wear the CLUB uniform
- 9.1.7 The proposer and seconder of a junior member shall be responsible for the behaviour of such junior member and visitors.

10 TEMPORARY MEMBER:

- 10.1.1 Temporary membership is usually limited to a period of two months in any one- year subject to the discretion of the main committee.
- 10.1.2 A temporary member shall not have a vote and may not serve on any committee.
- 10.1.3 A temporary member shall enjoy all the facilities of the CLUB.
- 10.1.4 The committee may extend the privileges of temporary membership to any person while engaged in a match or competition at the CLUB or to an important visitor without charging any fees.

11 PENSIONER MEMBER:

- 11.1.1 An ordinary member of 63 year of age who has been a member in good standing for a period of not less than five years is eligible for pensioner membership. The spouse or life partner of such member will automatically attain the same status.
- 11.1.2 Application shall be made to the committee for change to pensioner membership not later than two months prior to the end of the club financial year following attaining the above-mentioned age.
- 11.1.3 A pensioner member shall enjoy all the privileges of ordinary membership.
- 11.1.4 The annual subscription payable by pensioner members shall be 25% of the relevant prevailing ordinary membership subscription at the time of the application. This subscription shall be subject to the annual increase as determined by the Committee or Special General Meeting annually. All pensioner members registered prior to 1 May 1994



shall pay a subscription of R50 per annum, which shall be fixed for the duration of their membership.

- 11.1.5 Special Levies levied by the club from time to time shall be payable by the pensioner at the full value of the special levy, unless such special levy explicitly excludes Pensioner members, or provides for a discount to pensioner members.

12 CREW VISITOR

- 12.1 Only members who have the right to do so may propose to the Committee the - introduction of Crew Visitors for the sole purpose of enabling that member to use the services of such Crew Visitors as cruising or racing crew on such member's own boat.
- 12.2 The member shall be responsible for the forwarding to the Committee of a completed application form for the introduction of each Crew Visitor together with the relevant fee.
- 12.3 Upon acceptance by the Committee, the introduction will be valid for one year at the termination of which it may be re-proposed by the member.
- 12.4 Such Crew Visitor shall be accompanied by the relevant member whilst on CLUB premises.
- 12.5 The annual subscription of a Crew Visitor shall be 25% of the prevailing ordinary subscription. There shall be no entrance fee, and no special levies.
- 12.6 A Crew visitor may not rent a permanent caravan site.

13 HONORARY MEMBER:

- 13.1.1 Honorary membership may only be bestowed by a unanimous vote of the committee.
- 13.1.2 Honorary membership shall be for a maximum of 1 year but if for a longer period, it shall then appear on the agenda of the next annual general meeting where it may be confirmed by a majority vote.
- 13.1.3 A person may be elected an honorary member by
- 13.1.4 reason of his holding a public office or his having conferred some special benefit upon the CLUB.
- 13.1.5 An honorary member shall be exempt from the entrance fee, annual subscription and special levies.
- 13.1.6 An honorary member shall enjoy all the privileges extended to ordinary membership, except that they have no voting rights, and may not have a permanent caravan site

14 SOCIAL MEMBER:

- 14.1.1 Social membership shall be open to any person over the age of 18 years. The spouse or life partner of a social member shall be entitled to the same rights of social membership.
- 14.1.2 A social member and spouse or life partner shall have the right to enjoy all the facilities of the CLUB for a maximum of 48 days per calendar year but NOT for a period longer than 14 consecutive days. Such a member shall not be entitled to a caravan site. Such a member



shall not be entitled to vote, hold office or serve on any committee. Such a member shall not be entitled to introduce a visitor.

14.1.3 Such a member shall not be entitled to store a boat or any other equipment on the club property.

14.1.4 When a social member decides to apply for full membership, he shall make application in writing in the normal manner and shall from the date of acceptance of his application, pay a pro-rata portion of the difference in fees between social membership and full ordinary membership for the remaining period of the financial year plus any levies which may be applicable at such time.

14.1.5 Social membership will be restricted to a maximum period of five years where after such member shall convert to ordinary membership.

15 HONORARY LIFE MEMBER:

15.1.1 Honorary life membership may be bestowed on a member (as per clause 61.2) after a recommendation for outstanding work done on behalf of the club, has been received by the committee and included on the agenda of the following annual general meeting where it must be confirmed by a two thirds majority vote.

15.1.2 An Honorary Life Member and his/her spouse or life partner has all the rights and privileges of an Ordinary Member including the right to vote and hold a position on the club committee.

15.1.3 An Honorary Life member does not pay any membership fees, or special levies.

16 TYPES OF CRAFT PERMITTED:

16.1 Only the following categories of craft shall be allowed to be operated by members of the CLUB from the CLUB's property.

16.1.1 All types of sailing craft, including the larger type of catamarans and tri-marans with sleeping accommodation.. .

16.1.2 Motor cruisers with sleeping accommodation, Motor Boats, ski boats and Jet Skis.

16.1.3 Any other types of craft individually approved by the committee and registered on the CLUB register of craft prior to being used.

16.2 The Committee reserves the right to refuse approval of any specific vessel, regardless of category, if such vessel is deemed unsuitable due to safety concerns, size limitations, condition, or incompatibility with CLUB facilities and operations.

16.3 Any limitations or restrictions placed on other types of craft by the committee shall be strictly adhered to.

16.4 In the event that a craft is owned by more than one person, each part owner must be a member of the CLUB in order to operate such craft from CLUB premises.

16.5 All boats and vessels used by members must be registered where applicable and be compliant with the South African Marine Authority (SAMSA) small craft regulations as issued or amended from time to time. The Committee has the right to suspend the operation of any



boat which fails to comply with such regulations and/or prohibit any person from operating a boat without the appropriate SAMSA competency certificate.

BURGEES:

- 16.6 The CLUB Burgee will be a white pennant with a blue cross and a water emblem in the upper canton of the hoist. The Burgee should be flown at sail pasts and when cruising.
- 16.7 The Commodore's Burgee will be a white swallow tailed of the same design as the club Burgee above.
- 16.8 The Vice-Commodore's Burgee will be the same as the Commodores but with a black ball in the lower canton of the hoist.
- 16.9 The Rear Commodore's Burgee shall be the same as the Commodores but with two black balls in the lower canton of the hoist.
- 16.10 The Past Commodore's Burgee shall be the same as the Commodores but shall bear an additional swallow emblem in the lower canton of the hoist.
- 16.11 The Commodore's and Past Commodore's Burgees should be flown on all ceremonial occasions i.e., sail pasts, and also on the moored yachts when the holders are either on board or on the CLUB premises.

17 UNIFORM:

- 17.1 The CLUB uniform for men shall be a navy blue or black jacket with a badge bearing the CLUB Burgee on the pocket.
- 17.2 The CLUB tie shall be navy blue with the CLUB Burgee spaced at intervals.
- 17.3 The above, worn with white, black, blue or grey trousers.
- 17.4 The ladies' uniform shall consist of a navy blue or black jacket or jersey with CLUB Burgee on the pocket, white blouse without tie and white, black, blue or grey skirt or slacks.

18 APPLICATION PROCEDURE FOR ORDINARY OR SOCIAL MEMBERS:

- 18.1 Applicants for ordinary or social membership shall pay the current entrance fee plus a pro-rata share of the current annual subscription fee, shall enclose a passport size recent



photograph and shall complete and submit an application for membership form (digital or paper based) giving the following details: -

- 18.1.1 Category of membership applied for;
- 18.1.2 Surname and first names;
- 18.1.3 Spouse's name and names and dates of birth of children; -
- 18.1.4 Addresses and telephone numbers;
- 18.1.5 Occupation and type of business;
- 18.1.6 Date of birth (alt applicants);
- 18.1.7 Yachting and yachting administrative experience;
- 18.1.8 Membership of other clubs;
- 18.1.9 Name, class and registered class number of yachts;
- 18.1.10 Registered Vaal Dam number of yachts;
- 18.1.11 Owner or part-owner of yacht (name/s of part-owner/s);
- 18.1.12 Signature of applicant;
- 18.1.13 Prior to the interview mentioned in Clause 18.2.3 the proposer and seconder (who must have been ordinary members for at least one year) and two committee members who must have personally interviewed the applicant, must sign the application form.

18.2 The following procedure for election of members shall apply: -

- 18.2.1 The Secretary or grounds manager will post an abbreviated new member application notification on the CLUB notice board for a period of not less than eight weeks for scrutiny by members, and will send the VCA Rules to the applicant. The secretary will send the application form to the main committee by email or whatsapp.
- 18.2.2 The proposer shall during the eight-week period introduce the applicant to as many members and committee members as possible.
- 18.2.3 Not less than eight weeks after submission of the application, the applicant shall be interviewed by a quorum of the committee who shall vote on his acceptance or rejection by show of hands. One-third or more of the committee present at the time of the interview, voting against the applicant, will deny him membership.
- 18.2.4 The applicant will be notified of the result (no reason will be given if the application is unsuccessful).
- 18.2.5 The applicant, if unsuccessful, will be refunded the full amount paid, less an amount to cover the period of temporary membership. He will be required to remove any caravan, boats, moorings or equipment from CLUB property and return the CLUB key within three weeks of notification.

18.3 On acceptance for membership of the CLUB, the applicant becomes a CLUB member and will be issued with a club tie and burgee. and enter them into a minute book with keep



electronic copies on the VCA laptop. All minutes will be distributed to the main committee by e-mail.

18.4 Failure to comply with the above procedure may cause the application to be rejected.

18.5 Should an applicant withdraw his application for any reason during the eight- week period, he shall be entitled to a refund equivalent to 80% of his initial payment.

18.6 No rejected applicant may apply for membership again until the expiration of twelve months from the date of rejection of such application.

19 FEES:

19.1 Entrance fees and annual subscriptions shall be decided upon or varied at a special general meeting of the CLUB and shall be published in the yearly handbook and on the CLUB notice board. The annual subscription shall be due on 1 May of each year.

19.2 The onus to pay subscriptions rests with each member and any member not having paid his annual subscriptions and site fees by 30 June of any year shall, except under extenuating circumstances (as adjudged by the committee) immediately and without recourse cease to be a member.

19.3 Voting members in good standing shall be entitled to vote by proxy with regard to any proposed amendments to the fee's subscriptions or levies. If such members do not avail themselves of their rights, they shall nevertheless be bound by the decision of the special general meeting.

19.4 Notwithstanding the provisions of paragraph 19.1 above, the committee may in its discretion increase subscriptions and site fees annually, if considered necessary, by not more than 15% per annum, without calling a special general meeting.

19.5 The committee may, at its discretion, from year to year, provide for terms of payment of membership fees, subscriptions and levies by members, and may charge an administration fee determinable by the committee, or interest not exceeding 20% per annum, in respect of such amounts as are outstanding in terms of this agreement.



20 LEVIES:

- 20.1 Levies or special levies for special purposes such as development works for buildings, boating facilities or grounds shall be decided upon at a special general meeting of the CLUB.
- 20.2 Having been proposed, voted upon and adopted at such special general meeting, the levy or special levy shall be mandatory for all members except where specifically excluded in the membership category
- 20.3 A member who has not paid his levy or special levy within six months of the special general meeting adopting such levy or within such period as the special general meeting has decided that such special levy should be paid, and after a written notice has been dispatched to his last known registered email address as per the secretary's records, shall immediately cease to be a member of the CLUB at the discretion of the committee and his/her name shall be struck off the CLUB membership list.

21 MAIN COMMITTEE - COMPOSITION:

- 21.1 The management of the affairs of the CLUB shall be vested in the main committee, which shall consist of: -
 - 21.1.1 The officers of the CLUB as defined in paragraph 24.1
 - 21.1.2 Two club members defined as ordinary members
- 21.2 The Chairman of the main committee may request the attendance of any officer or member at a main committee meeting for a specific purpose. This includes the attendance of the Grounds manager.
- 21.3 In the event of the Commodore resigning during his term of office, the Vice- Commodore shall be his successor and shall automatically hold his office until the next annual general meeting.

22 MAIN COMMITTEE - FUNCTIONS:

The main committee will: -

- 22.1 Perform any act, which it may deem necessary or desirable for the purpose of carrying out the objects of the CLUB as defined in the Constitution;
- 22.2 Have the power to make, amend and rescind rules for the regulating of the affairs of the CLUB as long as such rules are not in conflict with the Constitution of the CLUB. Such rules shall be posted on the official notice board of the CLUB for the information of members and published in a year book, a copy of which will be given to each member;
- 22.3 Open and operate a banking account, and if necessary, a savings account at a recognized commercial bank. For purposes of operating those accounts and for processing of payment , electronic payments and withdrawal of monies, any two of the following authorisations are



required: -

Commodore; Vice-Commodore; Treasurer; Secretary.

- 22.4 To accept donations, grants or bequests.
- 22.5 To hold functions to raise money for the CLUB funds.
- 22.6 To borrow or raise money and secure payment thereof in such manner as the CLUB may deem fit.
- 22.7 Invest any moneys of the CLUB not immediately required for any particular purpose in any manner as may be determined from time to time.
- 22.8 To undertake any acts or functions that may be conducted for the attainment of the objective of the CLUB.
- 22.9 Maintain and repair all CLUB property, movable and immovable and make such renewals from time to time as may be necessary;
- 22.10 Purchase items of equipment and stores, liquor and consumables necessary for the running of the CLUB;
- 22.11 Authorize the entertainment officer to apply for and sign documents on behalf of the CLUB for the sale of any commodities on CLUB premises including liquor;
- 22.12 Carry out any matters relating to the law, in or out of any Court of Law. The CLUB shall sue and be sued in the name of the Vaal Cruising Association.
- 22.13 Any member of the main committee failing to attend three consecutive ordinary meetings of the committee without having obtained leave of absence shall cease to be a member of the committee and be informed of this by the Secretary in writing.
- 22.14 The main committee shall have the power to fill vacancies, which may occur in the committee.
- 22.15 The main committee will consider and bestow all CLUB Honor's and Awards.
- 22.16 The main committee must call an SGM to approve Project or Capital expenses exceeding a Hundred Thousand Rand (R100,000).
- 22.17 Appoint and manage, (including discipline) the grounds manager in accordance with the Basic conditions of Employment Act and his personal performance criteria.

23 MAIN COMMITTEE - MEETINGS:

- 23.1 The main committee shall meet at least eight times per year.
- 23.2 The Secretary shall keep the minutes of the meetings and enter them in electronic form on a cloud storage for record purposes.
- 23.3 At the commencement of the meeting the minutes of the previous meeting shall be tabled as a true reflection. The committee shall note any amendments required, after which the



minutes shall be proposed and seconded by member of the meeting, and any amendments captured.

23.4 The Chairman shall sign the minutes as being a correct record of that meeting.

23.5 A quorum at a main committee meeting shall be six.

24 OFFICERS

24.1 Officers of the CLUB shall consist of:

Commodore (Flag officer - senior)
Vice-Commodore (Flag officer - senior)
Rear Commodore - Racing (Flag officer)
Rear Commodore - Cruising (Flag officer)
Bosun
Public Relations Officer
Entertainments Officer
Secretary
Treasurer
Health and Safety Officer

24.2 The Officers shall be elected at the annual general meeting. These officers are entitled to attend main committee meetings.

24.3 To be nominated as Senior Flag Officer, members shall have previously served on the main committee for at least one year.

24.4 Sub-committees can be formed as is required, Flag Officers shall be free to attend any meetings of sub-committees.

24.5 The outgoing Commodore automatically remains on the main committee ex- officio for one year after his term of office expires.

24.6 All officers will be elected for one year only and may serve for further terms only if re-elected at the Annual General Meeting.

24.7 The Commodore is elected for a term of two years, and may be re-elected at an AGM for a further term of one year.

24.8 The Commodore may not serve more than 4 consecutive years.

25 DUTIES OF THE COMMODORE:

The duties of the Commodore shall be: -

25.1 To chair special general meetings, annual general meetings and main committee meetings of the CLUB.

25.2 To promote generally the CLUB'S objectives and to assume responsibility or the overall operation of the CLUB.

26 DUTIES OF THE VICE-COMMODORE:

The duties of the Vice-Commodore shall be: -

26.1 To support the Commodore and to deputize on his behalf in his absence.

26.2 To carry out any other duties as required by the Commodore.



27 DUTIES OF THE REAR COMMODORE-RACING:

The duties of the Rear Commodore-Racing shall be: -

- 27.1 To support the Commodore and the Vice-Commodore and to deputize on their behalf in their absence.
- 27.2 To control the execution of and to plan, in collaboration with the Commodore or Vice-Commodore and Racing Secretary, all matters relating to yacht racing, including the compilation of the annual racing program, attend NKA meetings as liaison with the committee.
- 27.3 To appoint as necessary: -
 - 27.3.1 a Racing Secretary;
 - 27.3.2 a Judge – handicapper;
 - 27.3.3 a Bridge Officer;
 - 27.3.4 a Racing Committee;
 - 27.3.5 a Protest Committee;
- 27.4 to maintain records, publish racing results, keep a trophy register

28 DUTIES OF THE REAR COMMODORE-CRUIISING-

The duties of the Rear Commodore-Cruising shall be: -

- 28.1 To support the Commodore and Vice-Commodore.
- 28.2 To control the execution of and to plan, in collaboration with the Commodore or Vice-Commodore and his cruising committee, all matters relating to cruising, including the compilation in conjunction with the Rear Commodore-Racing of the annual cruising program.
- 28.3 To appoint a cruising committee as necessary.



29 DUTIES OF THE BOSUN:

The duties of the Bosun shall be: -

- 29.1 To control the execution of and to plan, in collaboration with the Commodore or Vice-Commodore, all matters relating to moorings, mooring lay-out plans, jetties, slip-ways, work boats and engines, marker buoys and all related equipment on the shore and in the water.
- 29.2 To move yachts and moorings as may be required .
- 29.3 Yachts and power boats will only be moved in absence of the owner after a written request has been submitted by the owner, by which the owner absolves the club, the bosun and grounds manager from any claims for damages.
- 29.4 To inspect all new moorings before these are laid and to give permission for them to be laid only if they conform to the CLUB specification for size and shape of block, size and length of chains, shackles and swivels.
- 29.5 To inspect moorings already in use and to condemn any which constitute a hazard to other moored yachts.
- 29.6 To take the necessary action after verbal or other notification, where possible, to the owner to rectify the situation with regard to a condemned mooring.
- 29.7 To determine, with the help of witnesses and in conjunction with Flag Officers, the responsible party in the event of a boat having been damaged by another boat for any reason and to present a report to the main committee.
- 29.8 To co-opt helpers to assist him in his duties.

30 DUTIES OF THE GROUNDS MANAGER:

The duties of the Grounds Manager shall be as defined in his contract of employment which is set and changed by the committee from time to time, in accordance with South African fair labour practice.

31 DUTIES OF THE PUBLIC RELATIONS OFFICER:

The duties of the Public Relations Officer shall be: -

- 31.1 To control the execution of and to plan, in collaboration with the Commodore and Vice-Commodore, all matters relating to the publicity of the CLUB affairs, including the timely compilation, printing and distribution of CLUB newsletters and a yearly CLUB handbook.
- 31.2 to implement and update the social media Policy and social media presence for the club.
- 31.3 To co-opt helpers to assist him in his/her duties.

32 DUTIES OF THE ENTERTAINMENT'S OFFICER:

The duties of the Entertainment's Officer shall be: -



- 32.1 To control the execution of and to plan, in collaboration with the Commodore and Vice-Commodore, all matters relating to entertainment and catering.
- 32.2 To ensure that there is an adequate social programmed throughout the year aimed at developing and maintaining a high standard of fellowship among CLUB members and with the other clubs.
- 32.3 To ensure that games and sports/play-equipment is available and maintained to cater for the needs of the various age groups.
- 32.4 To co-opt helpers to assist him/her in his/her duties.
- 32.5 To hold and maintain stocks of all CLUB regalia and promote the sale of same.

33 DUTIES OF THE SECRETARY:

The duties of the Secretary shall be: -

- 33.1 To keep minutes of meetings of the main committee, annual general meetings and special general meetings of the CLUB.
- 33.2 To receive and reply to all correspondence as directed by the main committee.
- 33.3 To receive and table all applications and deal with correspondence in connection with new members and to maintain a waiting list of new applicants should this be necessary.
- 33.4 To file all letters received and copies of those sent and maintain a master copy of all CLUB administrative information.
- 33.5 To keep a register of members, their full names and addresses and a register of their craft, permanent caravan site allocations, and boat locker allocations
- 33.6 To be responsible for the safe keeping of all CLUB records. Titles, permits, plans, securities and all other valuable documents pertaining to the CLUB are saved to a cloud storage
- 33.7 to implement the POPIA Policy and to ensure that is updated with any Parliamentary amendments
- 33.8 to send out notices to members of the SGM and AGM as well as previous year's minutes, agendas and proxy forms



34 DUTIES OF THE TREASURER:

The duties of the Treasurer shall be: -

- 34.1 To hold and control the funds of the CLUB and bank them in a bank determined by the main committee.
- 34.2 To produce bank statements at meetings of the main committee.
- 34.3 To issue statements of account in respect of annual
- 34.4 To give receipts for all moneys received.
- 34.5 To make payments as directed by the main committee.
- 34.6 To keep proper books of account.
- 34.7 To prepare an income and expenditure account and a balance sheet for the auditor at each year-end.
- 34.8 To ensure that all aspects of CLUB insurance are maintained and paid up to date.
- 34.9 To maintain the assets register

35 DUTIES OF THE HEALTH AND SAFETY OFFICER:

The duties of the Health and Safety Officer shall be: -

- 35.1 To deal with all matters relating to and the promotion of sail training of CLUB members.
- 35.2 To appoint and preside over a sub-committee whose duty will be to assist, assess, and examine all applicants for competency certificates?
- 35.3 To ensure that all CLUB members observe the minimum safety requirements and that all CLUB yachts and power boats conform to the minimum safety requirements as stipulated in the current year book and class regulations.
- 35.4 To liaise with SAS and NKA regarding all aspects of sail training and safety.
- 35.5 To ensure that all vessels comply with SAMSA rules and regulations.
- 35.6 To monitor and control the vessel register of legal craft.

36 DUTIES OF THE COMMITTEE MEMBERS:

The duties of the committee members will be to carry out specific duties and projects as directed by the committee.

37 DUTIES OF THE RACING SECRETARY:

The duties of the Racing Secretary shall be: -

- 37.1 To assist the Rear Commodore-Racing.
- 37.2 To do all secretarial work related to CLUB racing and regattas
- 37.3 To assist the Rear Commodore-Racing and the Judge/Handicapper in recording race results and working out handicaps.

38 DUTIES OF JUDGE/HANDICAPPER:

The duties of the Judge/Handicapper shall be: -



- 38.1 To assist the Rear-Commodore/Racing.
- 38.2 To officiate at races organized by the Vaal Cruising Association.
- 38.3 To work out handicaps and allowances and to keep proper records of these figures.
- 38.4 To sit on protest committees, if required.
- 38.5 To process, correlate and pass on race results to the Public Relations Officer for publishing and post these results on the CLUB notice board.
- 38.6 To co-opt helpers to assist him in his duties.

39 DUTIES OF THE BRIDGE OFFICER:

The duties of the Bridge Officer shall be: -

- 39.1 To assist the Rear Commodore/Racing.
- 39.2 To officiate at races organized by the Vaal Cruising Association and to be in charge of the committee boat.
- 39.3 To co-opt helpers to assist him in his duties.

40 DUTIES OF CLUB COUNCILLORS:

- 40.1 CLUB Councillors shall form an advisory council consisting of two past Commodores to be elected at the A.G.M., the Commodore and the immediate past Commodore
- 40.2 The Councillors shall receive minutes of main committee meetings, consider long-term plans and projects for the benefit of the CLUB and generally make such recommendations to the main committee as they see fit.
- 40.3 The Chairman of the council shall be a past Commodore elected by the council at it's first meeting after the annual general meeting.
- 40.4 CLUB Councillors may co-opt any CLUB member to assist in projects under consideration.



41 REMOVAL OF OFFICERS

- 41.1 Any officer of the CLUB may be removed from office before the expiry of their term in accordance with this clause.
- 41.2 The grounds upon which an officer may be removed from office shall be limited to:
- 41.2.1 serious or persistent breach of the duties of office as set out in this Constitution;
 - 41.2.2 conduct prejudicial to the interests, reputation, or good governance of the CLUB;
 - 41.2.3 misappropriation of CLUB funds or property, or a material conflict of interest that has not been properly declared and managed;
 - 41.2.4 incapacity which renders the officer unable to perform the duties of office for a continuous period exceeding three (3) months; or
 - 41.2.5 conviction of any offence involving dishonesty, violence, or moral turpitude.
 - 41.2.6 by written requisition signed by not fewer than fifteen percent (15%) of voting members in good standing, addressed to the Secretary or Commodore and setting out the grounds relied upon.
- 41.3 The Secretary or Commodore shall deliver to the officer concerned written notice setting out the grounds for the proposed removal and any supporting evidence. The officer shall be entitled to:
- 41.3.1 a period of not less than fourteen (14) days from receipt of the notice within which to submit a written response;
 - 41.3.2 attend and be heard at the meeting at which the matter is to be decided; and
 - 41.3.3 may be accompanied at such meeting by a fellow voting member of the CLUB.
 - 41.3.4 A motion for removal shall be tabled at a duly convened meeting of the Main Committee, of which not less than fourteen (14) days' written notice shall have been given to all Main Committee members and to the officer concerned, setting out the grounds relied upon.
 - 41.3.5 The officer concerned shall not participate in the vote on their own removal, nor shall any other officer with a direct conflict of interest in the matter.
 - 41.3.6 A resolution to remove any officer shall be passed only by a two-thirds majority of the Main Committee members entitled to vote and present at the meeting, voting by secret ballot.
 - 41.3.7 Upon a successful vote for the removal of any officer other than the commodore from office, the officer must immediately vacate his position, and the Main Committee may co-opt a replacement to serve until the next Annual General Meeting.
 - 41.3.8 In the case of a successful vote for removal of the commodore from office this will not remove the commodore from office but rather entitle the committee to proceed to the removal of the commodore clause as stipulated below.



41.4 REMOVAL OF THE COMMODORE

Removal of the Commodore shall be effected only by Special General Meeting, in accordance with the following provisions:

- 41.4.1 The Secretary shall convene a Special General Meeting in accordance with the SGM clause for the purpose of considering the proposed removal. The notice of meeting shall set out the grounds relied upon and shall include the Commodore's written response, where one has been submitted.
- 41.4.2 A resolution to remove the Commodore shall be passed only by a two-thirds majority of voting members present (including valid proxy votes) at the Special General Meeting, voting by secret ballot.
- 41.4.3 Upon a successful vote of removal the Commodore shall immediately vacate his position as Commodore and the Vice-Commodore shall succeed to the office of Commodore and shall hold office until the next Annual General Meeting.

41.5 SUSPENSION AND GENERAL PROVISIONS

- 41.5.1 Pending the outcome of removal proceedings under either 43.3 or 43.4 the Main Committee may by resolution suspend the officer concerned from the exercise of their duties. Such suspension shall not constitute a finding of fault and shall lapse automatically if the removal resolution is not carried. Where the Commodore is suspended, the Vice-Commodore shall act in the office of Commodore for the duration of the suspension.
- 41.5.2 Nothing in this clause shall limit the right of an officer to resign their office voluntarily, nor shall it affect the right of the Main Committee or members to act under the disciplinary provisions of this Constitution in respect of an officer's conduct as a member of the CLUB.

42 FINANCIAL YEAR:

The financial year of the CLUB shall commence on the 1st of May and end on the 30th of April each year.

43 ANNUAL GENERAL MEETING:

- 43.1 The annual general meeting of the CLUB shall be held in or about June of each year.
- 43.2 21 (Twenty-one) days notice of such meeting shall be sent to every member together with the agenda, time, date and venue, and shall also be posted on the CLUB notice board.
- 43.3 Nominations of candidates for election to the main committee must be signed by the proposer, seconder and nominee, and be received by the Secretary 14 (fourteen) days prior to the commencement of the annual general meeting. Nominations for a particular post will be called for from the floor only if no formal nominations have been timeously received.
- 43.4 Nominations as set out in the preceding clause shall be posted on the notice board and sent to members 7 days prior to the commencement of the annual general meeting.

44 A G M / ORDER OF BUSINESS:

The order of business at the annual general meeting shall be as follows:



- 44.1 To read the notice convening the meeting.
- 44.2 To receive and record apologies.
- 44.3 To approve the minutes of the last A.G.M. and any subsequent special general meetings
- 44.4 To consider and approve the balance sheet, income and expenditure statement, treasurers, and auditor's report.
- 44.5 To receive and consider the Commodore's report.
- 44.6 To consider and confirm the election of honorary life members.
- 44.7 To consider any other matters of which due notice shall have been given.
- 44.8 To elect officers and two committee members for the ensuing year.
- 44.9 To elect councillors for the ensuing year.
- 44.10 To appoint auditors for the ensuing year.
- 44.11 Matters brought up without due notice having been given, can be discussed but not voted on and will be noted for the attention of the new main committee.

45 RULES APPLICABLE TO ANNUAL GENERAL MEETINGS:

- 45.1 A straight majority of votes by voting members present, will carry any motion tabled at the annual general meeting.
- 45.2 A quorum shall be either thirty voting members or ten percent of the voting members in good standing whichever is the greater.
- 45.3 In the event that a quorum is not present within thirty minutes after the starting time of the meeting, a further annual general meeting will be called after a period of not less than twenty-one days from the date of the first meeting.
- 45.4 Those present and entitled to vote at the second meeting, may proceed with the business of the original agenda and all decisions recorded will be accepted whether or not a quorum is present.
- 45.5 Voting may take place via ballot papers

46 SPECIAL GENERAL MEETING:

- 46.1 A special general meeting may be called at any time by the main committee or by the receipt of a requisition signed by ten percent of the voting members stating the business to be discussed.
- 46.2 The notice and agenda of a special general meeting shall be sent by the Secretary to every member within twenty-one days of the receipt of the requisition and the meeting must be held not less than twenty-one days after the posting of the notice to members.
- 46.3 Voting members in good standing shall be entitled to vote by proxy. If such members do not avail themselves of their rights, they shall nevertheless be bound by the decision of the



special general meeting. A person who casts a proxy vote at a meeting shall be a voting member and he/she shall present a letter of authorization to the meeting.

46.4 Only such business as appears on the agenda shall be discussed at a special general meeting.

46.5 A two-thirds majority made up of voting members present and including members entitled by reason of Clause 46.3

46.6 two proxy votes, shall be necessary to carry any motion dealt with at a special general meeting. As an example: -

Voting members present:	100
Members voting by proxy:	20
Total members entitled to vote:	120
Two-thirds majority = $\frac{2}{3} \times 120 =$	80

Except in the case of para 58, 59 and 60, which require 75% approval of the voting members of the club.

46.7 A quorum shall be either thirty voting members or ten percent of the voting members in good standing whichever is the greater.

46.8 In the event that a quorum is not present within thirty minutes after the starting time of the meeting, a further special general meeting will be called after a period of not less than twenty-one days from the date of the first meeting. Proxy votes received for the first meeting will be valid for the second meeting.

46.9 Those present and entitled to vote at the second meeting may proceed with the business of the original agenda and all decisions recorded will be accepted whether or not a quorum is present.

46.10 Voting may take place via ballot papers or by means of secret ballot papers

47 ALTERATIONS TO THE CONSTITUTION. FEES. SUBSCRIPTIONS AND THE PASSING OF LEVIES AND SPECIAL LEVIES

Alterations to the Constitution, fees and subscriptions, and the passing of levies and special levies may only be authorized at a special general meeting except as provided for in Section 19.4



48 NOTICES:

48.1 It is the duty of every member to furnish the Secretary in writing with his address to which all notices shall be sent and in the event of a change of address, the Secretary shall be informed immediately in writing.

All notices required by the Constitution and/or rules to be sent to any member, shall be deemed to have been duly sent when e - mailed by or otherwise forwarded to the address so furnished under (1) above.

49 CONSTITUTION AND RULES BINDING ON MEMBERS-

49.1 All members shall be bound by the Constitution and rules formulated by the main committee.

49.2 In the case of dispute regarding the interpretation of the Constitution or rules, the main committee's interpretation shall be final and binding on all members of the CLUB.

50 DISCIPLINE:

50.1 Should the conduct of any member, either on or off the club premises, upon being reported to the Main Committee a member be considered to be unseemly, unsportsmanlike or injurious to the character of the club, the Main Committee may, after investigation, instate a disciplinary process with the member.

50.2 Should any member persistently, after written notice from the Secretary, refuse to conform to any rule(s) or regulation(s) or clause(s) of the Constitution currently in force, the Main Committee may instate a disciplinary process with the member..

50.3 A member has the right to be notified of his offences in an invite to disciplinary hearing at least 14 days in advance. The member may attend such a meeting via online meeting methods or submit written representation. If the member does not attend the disciplinary hearing a decision by the committee may be made in his absence.

50.4 If a member is found to be guilty of an offence during a disciplinary hearing at the sole discretion of the committee, the member may either be suspended for up to three months or the member may be requested to resign.

50.5 Should a member, having been sent such 'request to resign' under Clause 50.4 not do so within 21 days from the date of the request, the Main Committee is empowered to remove his name from the Register of Members without recourse, and any subscriptions and/or fees already paid by the member shall be forfeited.



51 COMPLAINTS:

- 51.1 Any complaint which a member wishes to bring to the notice of the main committee, shall be made in writing and delivered to the Secretary at least seven days prior to a main committee meeting, otherwise the complaint may be held over until the next meeting.
- 51.2 The main committee will consider the complaint and carry out whatever investigations may be deemed necessary.
- 51.3 The ruling of the main committee, together with an account of whatever action may have been taken, will be recorded in the minutes of the main committee.
- 51.4 A letter will be sent to the complainant informing him/them of the committee's decision and what action has been taken.
- 51.5 should there be a complaint between two main committee members, the complaint shall be laid before the advisory council. this complaint should be sent to the chairman of the advisory council for resolution

52 MEMBERS' LIABILITY:

The liability of members is limited to the amounts, which they may be owing to the CLUB in respect of: -

- 52.1 Unpaid subscriptions;
- 52.2 Fees;
- 52.3 Levies;
- 52.4 Special Levies
- 52.5 Sundry charges.

53 Visitors:

- 53.1 Only members who have the right to do so may introduce visitors to the CLUB.
- 53.2 The member shall be responsible for placing the visitors/s name/s in the visitors' book and for signing his own name opposite it.
- 53.3 The introduction holds good for a maximum of three days at a time.
- 53.4 No one visitor may be introduced more than four times in a year.
- 53.5 No visitor of a member may be present on the CLUB property except in the company of that member who shall at all times be responsible for the actions of the visitor/s.
- 53.6 In so far as the use of CLUB facilities by visitors of its members is permitted, the number of visitors of any member may not on any occasion exceed the number permitted by the CLUB rules.
- 53.7 Members who are caregivers to their parents or are the primary caregiver of a minor child may apply to the committee for special dispensation allowing for extended periods of stay with the member.
- 53.8 Visitors are limited to a maximum of 4 (four) days – 3 (three) night's stay.

54 RECIPROCITY

Reciprocity shall be extended to fully paid-up registered members of other yacht clubs



55 CARAVAN SITES:

- 55.1 Caravan sites will be allocated only for the use of ordinary, intermediate, , honorary life, and pensioner members at an annual fee to be determined by the CLUB committee.
- 55.2 Members resigning from V.C.A. or who have their membership terminated in accordance with the Constitution, automatically forfeit their right to occupy any site, and their caravans and other property must be removed from the premises within 90 days. In the event of failure to do this, the committee is authorized to remove such property without liability for any damage so caused and may at its discretion charge storage fees until such property is removed from the premises.
- 55.3 Fully paid up members are allowed to sell the structures on, and contents of their sites, to other paid up members, (Excluding members that are still in their probation time).
- 55.4 The seller member must in writing notify the committee of the proposed sale, in order for the committee to keep accurate records and the treasurer to bill the purchaser for the Caravan site rental during the next annual billing period, for the site.
- 55.5 Caravan site occupiers who wish to erect new structures or make alterations to structures such as caravan shelters, storage/toolsheds must submit plans for such erections or alterations to the Committee, before commencing work.
- 55.6 In the event that a member fails to comply with clause 55.5, the Committee shall advise the member in writing of such non-compliance. Upon this notification being issued, the affected member shall automatically become fully liable in place of the CLUB for any legal action, which may be instituted as a result of such non-compliance.
- 55.7 No speedboats or dinghies may be parked on caravan sites without special dispensation. Boats must be parked in the designated area in the boat park.

56 LIQUOR:

- 56.1 CLUB members, bona fide reciprocity members and signed in visitors are permitted to purchase refreshments supplied on the Club premises. Only club members, bona fide reciprocity members and signed in visitors are allowed to purchase ALCOHOL from the bar at the CLUB.
- 56.2 No profit from the sale of liquor by the CLUB shall accrue to any individual except in terms of a written agreement approved by the Minister of Trade and Industry on application.

57 TERMINATION OF MEMBERSHIP:

- 57.1 Should the membership of any member be terminated of his own accord or in terms of Clause 19.2 or in terms of clause 50.4 or for any other reason such member shall have 90 days after the date of termination of his membership to remove all his property from the CLUB premises failing which such property (including yachts and caravans) shall become CLUB



property without any further notice to such member. The committee shall then have the right to sell, use or dispose of such property as it sees fit for the benefit of the CLUB.

- 57.2 On termination of such membership an email shall be sent to the last known email address of the member reminding him of the CLUB'S Authority in terms of this clause.
- 57.3 The Spouse or Life partner of a member may apply for membership themselves according to the rules of new membership application, save that no initial entrance fee will be levied, and the initial 8 week probation period will be waived.
- 57.4 If the exiting member is fully paid up and he or the executor of his estate, provides the committee with a written letter of transfer of ownership the spouse or life partner may after acceptance of the membership application continue to keep the property at the Club, providing that the required fees are paid timeously.

58 WINDING UP OF CLUB:

- 58.1 The CLUB shall always consist of at least 35 ordinary members. If the CLUB falls below 35 ordinary members the main committee shall forthwith convene a special general meeting charged with either winding up of the CLUB or forfeiting the liquor license of the CLUB.
- 58.2 The CLUB may only be wound up by the resolution of a special general meeting called for that purpose. Such resolution shall be approved by a two third majority of voting members.
- 58.3 In the event of a resolution being passed to wind up the CLUB, the assets of the CLUB shall be liquidated and the balance of cash so raised, after settling all liabilities of the CLUB, shall be donated to a sailing or similar organization to be nominated by a majority vote at such meeting.

59 DISPOSAL OF LAND

- 59.1 Any sale, mortgage or disposal of immovable property belonging to the CLUB other than the disposal of such property under a Sectional Title or Share Block Scheme shall be subject to the approval of 75% of the voting members.
- 59.2 The Commodore, duly authorized at such Special General Meeting shall be entitled to sign all legal documents necessary for that purpose.

60 PROCEEDS OF DISPOSAL OF LAND

At the discretion of the Committee, the proceeds from the disposal of immovable property shall be: -



- 60.1 Deposited in a savings account at a recognized financial institution; and/or
- 60.2 Used to redeem loans and/or defray costs arising from the acquisition or sale of immovable property.
- 60.3 Safe as set out in sub-paragraphs 1 and 2 above all expenditure and investment of all sums arising from the disposal of immovable property shall be approved by 75% of the voting members of the club.
- 60.4 Notwithstanding anything else to the contrary contained in this constitution, the provisions of clauses 58,59 and 60 shall not be amended, altered or deleted without the approval of 75% of the voting members of the club.

61 AWARDS

- 61.1 Honor's Award: This is the highest honour the CLUB can bestow on a CLUB member. It will take the form of a CLUB blazer with a Vaal Cruising Association pocket badge, encompassed by a laurel wreath in gold wire, together with a navy-blue tie with CLUB burgees encompassed by gold laurel wreaths spaced at intervals. The award will be made to a member who through his sailing achievements, meritorious service or bravery brings renown and honour to the Vaal Cruising Association. The award will be recommended by the Committee and must receive a two-thirds majority approval of the CLUB members at an Annual General Meeting.
- 61.2 Honorary Life Membership: Honorary Life Membership will be awarded to a person, not necessarily a member, for outstanding work done on behalf of Vaal Cruising Association. The award will be recommended by the Committee and must receive a two-thirds majority approval of the CLUB members at an Annual General Meeting.
- 61.3 The Commodore's Award: The Commodore's Award will be made to a Commodore upon election. The award will consist of a blazer pocket badge of the Vaal Cruising Association encompassed by a laurel wreath in silver wire, together with a navy-blue tie with CLUB burgees encompassed by gold laurel wreaths spaced at intervals. He will also be awarded on completion of his term of office, a Vaal Cruising Association past Commodore's burgee and a suitably engraved award.
- 61.4 Roll of Honor: The Roll of Honor will be a board surmounted with the Vaal Cruising Association Burgee which will be erected in the clubhouse and will contain a list of all who have been honoured by the CLUB. The list will consist of Honor's Awards, Honorary Life Members and Past Commodores, and will include the year in which the award was made or the term of office, whichever is appropriate.
- 61.5 Committee Members Awards: All members of the CLUB who serve a full term of office on the Main Committee shall upon the completion of one year's service or at the discretion of the Committee for a shorter period be awarded in the case of:
 - 61.5.1 Gentlemen: A navy blue tie with CLUB burgees encompassed by gold laurel wreaths spaced at intervals.
 - 61.5.2 Ladies: A suitable item of CLUB regalia as may be decided upon by the Committee at the time.
- 61.6 Club Colors: CLUB color's are to be awarded annually to CLUB racing crew members (skipper and crew) where they have excelled in the racing field. The award will take the form of a silver wire scroll with Vaal Cruising Association and year embossed on the scroll, which is to be worn under the pennant of the blazer pocket badge. The award of full and half colors' will



only be made with the unanimous vote of the Committee and when a member has accumulated sufficient points in accordance with the allocation system to be found in the current year book.

62 Protection of Personal Information

- 62.1 The Protection of Personal Information (POPI) Act 4 of 2013 requires us to inform you how we use, disclose and destroy personal information we obtain from you. We are committed to protecting your privacy as a member and will ensure that your personal information is used appropriately and according to the applicable law.
- 62.2 We will only use your information to further the Club's objectives and to be able to communicate with you should the need arise. We will not sell or disclose your personal information to any third parties.
- 62.3 We do, however, need to disclose personal information in our club handbook, which is distributed to members only. No member is permitted to distribute this information to third parties.

End of VCA Constitution document